

Immigration judge decision

Procedural history and question presented

The immigration court issues this decision on October 22, 2024 in proceeding SYN-E0IR-24-RM-0113. A.R.M. conceded the charged overstay and applied only for protection under the Convention Against Torture. The merits hearing occurred September 17 and 18 with a Kalyrian-language interpreter, counsel for both sides, two transcript volumes, and a clerk exhibit receipt.

The question is whether A.R.M. proved that torture is more likely than not upon removal to Kalyra and that any qualifying harm would involve a public official acting officially or official consent or acquiescence. The court considers the admitted evidence described below and denies the application for the reasons stated.

Admitted evidence and record status

The admitted exhibits are P-1 through P-9, including the P-4 messages, P-5 complaint-routing materials, and A.R.M.'s eighteen-page declaration identified as P-7. The record also contains S.M.'s declaration and log, family and procurement materials, translations, Dr. Sore's evaluation, Dr. Varo's country report, both hearing volumes, the exhibit receipt, and DHS policy materials. P-7 was lodged April 12 and admitted at the hearing without an authenticity or timeliness objection.

The court excludes no part of P-7. No material outside the evidentiary record closed at the September hearing is considered. Each document is weighed according to foundation, specificity, consistency, and acknowledged limits rather than accepted merely because it appears in the exhibit list.

Governing CAT framework

A.R.M. bears the burden to show that torture in the proposed country of removal is more likely than not. Relevant evidence includes past torture, the possibility of relocation, gross or mass rights violations, and other country conditions. Qualifying harm must satisfy the severity, intent, purpose, and official-involvement requirements of the regulations.

Official acquiescence requires awareness of torturous activity and breach of a legal duty to intervene; awareness may include willful blindness. Formal law is relevant but not automatically dispositive. The court states these principles before turning to credibility, past events, the three feared sources, and protective institutions.

Credibility and evidentiary weight

A.R.M. testified in a detailed and generally responsive manner. The central chronology remained consistent with the declaration, family log, clinic notation, and complaint receipt. The clinic sources agree on May 21 at 14:20, right-ankle swelling, and limited left-shoulder movement. A minor difference about the order of two detention questions was disclosed and reasonably explained. The court finds A.R.M. credible concerning personal experiences.

Credibility does not establish every inference. A.R.M. could not directly identify the July speakers as Harbor League agents, prove a current registry flag, or identify every detention officer. Pel and Varo supplied institutional context with meaningful limitations. Sore's findings are consistent with aspects of the history but do not identify a cause.

Past detention and complaint

The court finds that municipal Unit Four officers detained A.R.M. for two nights, intentionally inflicted painful pressure and blows to obtain ledger information, and warned against a complaint. The unregistered setting, official credentials, detailed questions, clinic notation, and family observations support the account. The treatment was serious and unlawful.

The court also finds that A.R.M. submitted complaint **OCI - 23 - 441** on June 7 under initial route **IC - 2**. The audit links it June 9 to **CIV - 23 - 184** through **ARM - RX - 14**, changes destination June 10 to **RC - 4**, Unit Four regional command, and records “regional response pending” on June 30 with no independent interview. These findings bear on future risk and official response but do not alone determine the probability of future torture.

Future risk attributed to Unit Four

Unit Four has registry access through a liaison and previously sought the copied ledgers. The country evidence describes other unregistered questioning, but the sample is limited and no authenticated document shows an open case or current flag for A.R.M. More than a year passed without a direct threat before the hearing, and A.R.M. departed lawfully.

Considering Unit Four by itself, the court finds a serious possibility of renewed questioning but does not find it more likely than not that the unit alone will inflict regulatory torture. The court gives weight to the time elapsed, absence of a present order, and formal detention controls.

Future risk attributed to Harbor League

The July speakers knew ledger details and referred to Harbor League, and vendor contacts overlap with a dispatch office linked to a former Unit Four employee. The evidence supports contractor interest and access to information. It does not establish that Harbor League controls Unit Four or has independent official detention authority.

Considering Harbor League by itself, the court finds that threats or pressure could recur but that torture is not more likely than not. The speakers were not identified, no later personal contact occurred before the hearing, and the association remains partly inferential.

Future risk attributed to registry personnel

The national registry can record a return and permit household or employment queries.

Improper queries occurred in the audit sample, and a regional liaison can receive notifications.

No evidence shows that a registry employee threatened A.R.M., performs detention, or presently maintains a personal flag.

Considering registry personnel by themselves, the court finds that identification is possible but that torture by registry staff is not more likely than not. Registry capacity is an enabling fact, not proof of an independent source of severe harm.

Separate-source probability conclusion

The court has evaluated Unit Four, Harbor League, and registry personnel as distinct feared sources. None, standing alone, establishes a probability greater than one half. Because no individual source independently crosses that threshold, the court concludes that A.R.M. has not carried the burden.

The evidence shows contacts among the sources, but the court considers those contacts too uncertain to alter the separate findings. The court does not make a combined assessment of a chain in which registry identification or contractor information enables Unit Four action. The application is denied on the individual-source analysis.

Official awareness and acquiescence

The complaint routing supports institutional receipt by the Merrow command without an independent interview. Pel explained why the route conflicted with the external-review protocol. The court nevertheless finds no direct evidence that a senior official knew future torture was planned or expressly approved abuse.

The “regional response pending” status and absence of outside interviews are troubling. The court gives them limited weight because the record does not identify a decisionmaker or establish any response after June 30. It finds insufficient proof of official consent or acquiescence to future harm.

Formal safeguards

Kalyrian law prohibits torture and retaliation, requires registered custody, operates an inspector hotline, and authorizes an external review desk. Discipline tables show that some officers have been sanctioned. A.R.M. did not use the inspector hotline after the municipal complaint was routed to the regional command.

The court treats these formal safeguards as substantial evidence that authorities do not consent to torture. Although implementation is imperfect in Varo's sample, the court concludes that the available national mechanisms materially reduce the prospect of official acquiescence.

Internal relocation

A.R.M. may move between provinces without a formal internal passport and could initially use short-term lodging outside Merrow. Registered employment or services might expose address data, but Varo found no continuous nationwide surveillance by Unit Four. A.R.M. did not attempt long-term relocation before departure.

The court finds that relocation outside Orin Vale could reduce contact with local contractors and officers. It does not hold relocation categorically safe. The possibility nevertheless weighs against a finding that torture is more likely than not throughout Kalyra.

Medical and psychological evidence

Sore's examination found a healed wrist area and nonspecific rib tenderness, while the May 21 clinic notation recorded at 14:20 limited left-shoulder elevation, right-ankle swelling, rib tenderness, and hoarse voice. The symptom history is consistent with a traumatic experience and supports A.R.M.'s credible account of past detention.

The medical evidence does not identify the actors, establish a current registry flag, or predict future harm. The court gives it substantial weight on past experience and limited weight on future probability. Retained daily function does not negate distress but informs the report's limits.

Country evidence considered

Varo's report credibly distinguishes formal structure from municipal practice and identifies links among Unit Four, vendor contacts, registry access, and complaint routing. Its coded interviews, small complaint sample, and incomplete discipline data limit generalization. DHS's witness supplies additional evidence of national safeguards.

The court considers the country evidence but gives greater weight to formal prohibitions and the absence of a current personal flag. It does not adopt Varo's institutional map as a combined-risk finding because each connection contains uncertainty.

Order denying protection

The court finds removability as conceded. The application for withholding or deferral under the Convention Against Torture is denied. The court's ruling rests on its conclusion that none of the three feared sources individually makes torture more likely than not and that formal safeguards and possible relocation weigh against official acquiescence.

This order does not find that the past detention was lawful or that A.R.M. fabricated it. The court credits much of the past account but concludes that the regulatory future-risk burden has not been met under the analysis above.

Appeal rights, service, and transcript corrections

The parties are advised that a notice of appeal to the Board of Immigration Appeals must comply with the time and service requirements stated in the governing notice. The written decision is served on both counsel on October 22, 2024. A.R.M. reserves the right to challenge the separate-source analysis, consideration of evidence, acquiescence findings, and relocation discussion.

Two transcription corrections are incorporated: the expert's sample contained forty complaint entries, and the register evidence comprised six invoices totaling 137,400 units, each below the 25,000-unit threshold, first grouped and later corrected to remove grouping. Neither correction changes the exhibit ruling on P-7. The immigration judge signs and dates the sixteen-page decision.